

		Accordingly, the motion to strike is granted as stated above. The court will grant leave for Plaintiffs to bring a motion to amend their complaint to add punitive damages when and if they discover sufficient facts to do so. Defendants are to provide notice of this ruling.
57	<i>Pavlovich vs. General Motors LLC</i>	The Court grants Plaintiff Matthew L. Pavlovich’s unopposed Motion for attorney’s fees against Defendant General Motors LLC (GM) in the amount of \$29,732 in attorney’s fees and \$704.49 in costs. <u>Prevailing Party</u> GM agreed, via the Release Agreement, reasonable attorney’s fees, costs, and expenses were to be determined by the court by way of a noticed motion. Specifically, the terms of the Release Agreement identified Plaintiff as the prevailing party for purposes of any fee motion. (Reza Decl., ¶15.) <u>Lodestar Calculation</u> Civil Code section 1794, subdivision (d) requires the attorney fees to be based on “actual time expended” and to have been “reasonably incurred.” In <i>Robertson v. Fleetwood Travel Trailers of California, Inc.</i> (2006) 144 Cal.App.4th 785, 818–819, 820, the court concluded, “the statutory language of section 1794, subdivision (d), is reasonably compatible with a lodestar adjustment method of calculating attorney fees” because “the lodestar adjustment method is based on actual, reasonable attorney time expended as